

24STCV13097 24STCV13097

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 24STCV13097 Hearing Date: August 10, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

JI

YOUNG JANG,

Plaintiff,

vs.

ELLO

TRADING, INC.,

Defendant.

Case No.:

24STCV13097 [c/w 25STCV32469]

Hearing Date:

August 10, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT JIHWAN

LEE'S MOTION TO SET ASIDE ENTRY OF DEFAULT

Background

On

May 24, 2024, in Case No. 24STCV13097,

Plaintiff

Ji Young Jang ("Jang") filed a complaint against Defendant Ello Trading, Inc. ("Ello"), asserting three causes of action for (1) rescission; (2) declaratory relief; and (3) unfair competition – Bus. & Prof. Code § 17200, et seq.

On

November 6, 2025, in Case No. 25STCV32469,

Jang

filed a complaint against Defendant Jihwan Lee ("Lee"), asserting one cause of action for intentional misrepresentation (fraud).

The

Court Clerk entered Jang's request for entry of default against Lee on December 9, 2025.

On

January 21, 2026, the Court granted Jang's motion to consolidate the two actions.

On

June 30, 2026, the Court granted Jang's motion for summary judgment against Ello in its entirety.

Lee

now moves for an order setting aside the default entered against it on December 9, 2025. Jang opposes. Lee did not file a reply.

Request for Judicial Notice

The

Court grants Jang's request for judicial notice of Exhibits A, B, C, and D.

Evidentiary Objections

The

Court rules on Jang's objections as follows:

Objection

Nos. 1, 2: sustained

Legal

Standard

Code of Civil Procedure section 473, subdivision

(b) provides in pertinent part as follows:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect."

"[T]he moving party has the burden of showing that the neglect leading to default was excusable." (JJackson v. Bank of Am. (1983) 141 Cal.App.3d 55, 58.) "[B]ecause

the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds as stated in Tackett v. City of Huntington Beach (1994) 22 Cal.App.4th 60, 64].) Where the party in default moves promptly to seek relief, and no prejudice to the opposing party will result from setting aside the default, “very slight evidence will be required to justify a court in setting aside the default.” (Ibid.) “While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, ‘these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.’” (Kendall v. Barker, 197 Cal. App. 3d 619, 623 (1988) (emphasis in original).)

For discretionary relief, “[t]he six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed. [Citation.] The six-month period runs from entry of default, not entry of judgment.” (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.) When accompanied by an attorney declaration, the six-month clock for mandatory relief from an attorney mistake runs from the entry of default judgment. (Sugasawara v. Newland (1994) 27 Cal.App.4th 294, 296-297.)

Discussion

Lee moves under Code of Civil Procedure section 473, subdivision (b), to set aside the default entered against him on December 9, 2025, on the grounds that the default was a result of mistake, inadvertence, surprise or neglect.

A.

Procedural Issues

As a preliminary matter, Jang asserts that Lee’s motion is untimely. Default was entered against Lee on December 9, 2025, and Lee filed the instant motion on July 8, 2026, seven months after the entry of default. Lee’s motion for relief under Code of Civil Procedure section 473, subdivision (b) is discretionary, rather than mandatory, because Lee does not include an attorney declaration attesting to fault. Accordingly, “[t]he six-month period runs from entry of default, not entry of judgment.” (Manson,

Iver & York v. Black, supra,
176 Cal.App.4th at p. 42.)

Lee's failure to
file the instant motion within six months from the entry of default bars the
Court from finding in Lee's favor. Additionally, Lee's motion does not explain
why he failed to timely move for relief. Nor does Lee file a reply to Jang's
opposition addressing the motion's untimeliness. Accordingly, the Court cannot
grant the instant motion because "[t]he six-month time limit for granting
statutory relief is jurisdictional and the court may not consider a motion for
relief made after that period has elapsed." (Manson, Iver & York v. Black, supra, at
p. 42.)

B.
Merits

Notwithstanding
the above, the Court addresses the merits of Lee's motion.

Lee provides a
declaration in support. Lee attests that "[o]n or about November 2025, another
company I was the main representative of, Ello Trading Inc., was already in
litigation with the Plaintiff Jiyong Jang on the related and consolidated
matter of 24STCV13097. I had legal counsel, Mr. Sang Lee, Esq., representing me
on the matter, until his recent substitution of attorney." (Lee Decl., ¶ 2.) Lee
explains he "was unaware of this pending lawsuit at all, until sometime around
late December 2025, when Mr. Sang Lee, Esq. mentioned the case." (Lee Decl., ¶
3.) Lee explains that "[a]s this was a related case with the 24STCV13097 case I
was being represented on by Mr. Sang Lee, I engaged his service to defend this
current matter as well. [¶] I continued to follow up with Mr. Sang Lee, Esq.,
to make sure he is representing me on this pending case of 25STCV32469.
Specifically, I communicated with counsel Lee on December 29, 2025, January 2,
2026 and again on January 20, 2026." (Lee Decl., ¶¶ 4-5.) Lee further asserts
that he "had no reason to believe I was in a default status, as another case
involving the same parties were consolidated, and my own counsel assured me
that he was taking care of it." (Lee Decl., ¶ 6.) Lee "had since attempted to
reach out to Mr. Lee on whether a responsive pleading was filed on my behalf,
or at least have him write a declaration on the matter. He has been radio
silent on the response." (Lee Decl., ¶ 7.)

As for service,

Lee attests that he “was never personally served with any summons and complaint on November 7, 2025, Friday, at 11:25 a.m., as alleged in the Plaintiff’s proof of personal service... I was not present on that day at the work premise.” (Lee Decl., ¶ 8.) Lee declares “Plaintiff never personally served me with the summons and complaint and never served anyone with the authority to accept service on my behalf,” and “[b]ecause the summons and complaint were delivered to a person who lacked authority to accept service, I contend that service was not effected in compliance with California law.” (Lee Decl., ¶¶ 9-10.)

Lee asserts that

“[a]s I was already in litigation against the Plaintiff in a different case, there was no reason for me not to respond to the lawsuit.” (Lee Decl., ¶ 11.)

Lee explains that he “filed a Chapter 7 bankruptcy petition on December 10, 2025, which was discharged on March 23, 2026. As such, I was unable to defend this case, as I was still under the stay of bankruptcy.” (Lee Decl., ¶ 12, Exs. 3-4.) Lee also attaches a proposed answer to the complaint.

Lee’s motion

contends that “[i]n the present case, as is demonstrated by the attached detailed declaration of Defendant JIHWAN LEE, default taken as against the defendant were through parties’ inadvertence and excusable neglect, as there was no reason for the Defendant to default on the litigation, when reasonably relying on his counsel to defend the matter and litigate it on his behalf.” (Mot., 4:16-19.)

Jang’s opposition

asserts that Lee provides “incompetent evidence[,] [which] fails to rebut the presumption of valid service under California law after proof of service is returned by a registered process server.” (Opp., 2:9-11.) Jang asserts that, in contrast, she “provided competent evidence, through the Court’s file herein and RJN Exhibits ‘A’ to ‘C,’ as well as Defendant JIHWAN LEE’s own admission in the moving papers:

(1) That Defedant [sic] JIHWAN LEE was personally served with summons in the instant 25STCV32469 CASE by a registered process server – which creates a rebuttable presumption of valid service (see Court’s file herein);

(2) That Defenadnt [sic] JIHWAN LEE had actual

knowledge about the instant action since December 10, 2025 when he listed the instance [sic] case in his bankruptcy schedule (RJN, Exhibit 'B') – i.e. no mistake, inadvertence, surprise, or excusable neglect, and lack of diligence;

(3) That Defendant JIHWAN LEE had actual knowledge of the instant case through his attorney, Sang I. Lee, Esq. in December 2025 (Moving Papers, Decl. JIHWAN LEE, ¶3), who was retained to represent Defendant JIHWAN LEE in the instant 25STCV32469 CASE back in December 2025 (Moving Papers, Decl. JIHWAN LEE, ¶4) – once again, no mistake, inadvertence, surprise, or excusable neglect, and lack of diligence;

(4) That a copy of the default entered against Defendant JIHWAN LEE was actually served on Defendant JIHWAN LEE in his bankruptcy case through his current counsel, Jamie Jiyeon Kim, Esq. (RJN, Exhibit 'C').”

(Opp., 2:11-3:1.) Jang further contends that her “evidence clearly [establishes] (1) that Defendant JIHWAN LEE was served with summons in the instant case, (2) that Defendant JIHWAN LEE had actual knowledge of the instant case and the default entered against him for over 7 months (beyond the 6 months prescribed in CCP §473(b)), (3) that there was no 'mistake, inadvertence, surprise, or excusable neglect' on the part of Defendant JIHWAN LEE vis-a-vis his failure to respond to Plaintiff's summons herein, and (4) Defendant JIHWAN LEE did not exercise diligence required of a reasonable person in failing to take action on the default entered against him over 7 months ago.” (Opp., 3:2-8.)

Jang's evidence confirms that Lee's bankruptcy proceedings were initiated on December 10, 2025, just one day after default was entered against him. (RJN, Ex. B, p. 3.) Additionally, the bankruptcy documents list the instant case in which Lee seeks relief. (Ibid.) The documents also demonstrate that Lee's current counsel, Jamie Jiyeon Kim, is listed as Lee's representation for the bankruptcy proceedings. (RJN, Ex. C, 054, 088.) This evidence rebuts Lee's declaration where he explains that he learned about the instant case in late December and that Mr. Sang Lee was representing him.

Although Lee does not expressly move under Code of Civil Procedure section 473, subdivision (d), Jang addresses this provision of the statute.

Lee's declaration attests that he was never served, which would make entry of default void. "A party may move to set aside a void judgment under section 473, subdivision (d). 'A default judgment is void if the trial court lacked jurisdiction over the parties.' [Citation.] A default judgment entered against a defendant who was not served in the manner prescribed by statute is void." (First American Title Ins. Co. v. Banerjee (2022) 87 Cal.App.5th 37, 42.)

Jang cites Evidence Code section 647, which states, "[t]he return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." "The effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence." (Evid. Code, § 604.)

Jang asserts that while Lee "claims that he was never served with summons in the instant 25STCV32469 CASE, the proof of service was returned was by a registered process server, Tracy Turner (Registration #6701). This same proof of service is valid on its face because it expressly states that the summons was personally served upon Defendant JIHWAN LEE at his regular business address. See Court's file herein. Therefore, under California law, there is a rebuttable presumption of valid service (and valid entry of default)." (Opp., 6:20-25.) Jang addresses the inadmissible evidence Lee provided, asserting that "the purported 'evidence' presented by Defendant JIHWAN LEE to rebut the presumption of valid service in the proof of service returned by a registered process server (1) is self-serving, (2) is without foundation, and (3) is woefully inadequate under any evidentiary standard to rebut the strong presumption of valid service by a registered process server." (Opp., 7:13-16.) Here, the proof of service of summons demonstrates service was effectuated by a registered process server. And, as Jang points out, the declaration and evidence Lee provided are insufficient to refute the presumption that service was effective.

The Court finds that based on the foregoing, the instant motion is denied. Lee's motion is untimely under the discretionary provision of Code of Civil Procedure section 473, subdivision (b), and Lee does not provide an attorney declaration warranting mandatory relief under the statute.

Additionally, Lee cannot invoke relief under Code of Civil Procedure section 473, subdivision (d) because he does not present competent evidence refuting the presumption of valid service.

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Conclusion

Based on the foregoing, Lee's motion to set aside entry of default is DENIED.

Jang
is ordered to provide notice of this Order.

DATED: August 10, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court